



CHAPTER c.

An Act to empower the Metropolitan Water Board to execute works and to acquire lands and for other purposes. [31st July 1931.] A.D. 1931.

WHEREAS the Metropolitan Water Board (in this Act referred to as "the Board") are charged with the duty of supplying water within an area which comprises the whole of the county of London and parts of the counties of Middlesex Surrey Kent Essex and Hertford:

And whereas it is expedient that the Board should be empowered to construct the works described or referred to in this Act and to acquire lands for that purpose and for other purposes of their undertaking:

And whereas by the Metropolitan Water Board (New Works) Act 1911 the Board were empowered (inter alia) to construct a storage reservoir in the parishes of Staines and Stanwell (now forming part of the urban district of Staines) in the county of Middlesex (referred to in the said Act as Reservoir No. 5) and certain conduits or lines of pipes in the said parish of Stanwell (referred to in the said Act as Conduit No. 14 and Conduit No. 15) and to acquire lands for those purposes:

And whereas the period originally limited for the completion of the said storage reservoir and conduits or lines of pipes was by the Metropolitan Water Board

A.D. 1931. (Various Powers) Act 1921 extended until the eighteenth day of August one thousand nine hundred and thirty-six and the period originally limited for the compulsory purchase of lands and easements for the purposes of the said works was extended by the Special Acts (Extension of Time) Act 1915 and further extended by the said Act of 1921 but such period as so extended has now expired :

And whereas it is expedient that the powers of the Board for and with respect to the compulsory purchase of the said lands and easements should be revived and made exerciseable by the Board :

And whereas it is expedient that the Board should be empowered to borrow money for the purposes of this Act :

And whereas it is expedient that such further powers should be conferred upon the Board and such further provisions should be made as are contained in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans and sections showing the lines, situations and levels of the works by this Act authorised (such plans showing also the lands which may be acquired by the Board for the purposes of the said works), and plans showing the lands which the Board may acquire for other purposes under the powers of this Act and a book of reference to such plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same have been deposited with the several clerks of the county councils of the administrative counties of Hertford London Middlesex and Surrey and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Metropolitan Water Board Act 1931.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (that is to say):—

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Incorporation of Acts.

The Lands Clauses Acts (except sections 127 and 133 of the Lands Clauses Consolidation Act 1845 and the words “with two sufficient sureties to be approved of by two justices in case the parties differ” in section 85 of that Act);

The provisions of the Waterworks Clauses Act 1847 with respect to the following matters (that is to say):—

The construction of the waterworks;

The construction of works for the accommodation of lands adjoining the waterworks;

The breaking up of streets for the purpose of laying pipes;

The provision for guarding against fouling the water of the undertakers;

The recovery of damages not specially provided for and of penalties and the determination of any other matter referred to justices or to the sheriff; and

Access to the special Act;

The Waterworks Clauses Act 1863 (except section 12 of that Act and the words “under any agreement for the supply of water for other than domestic purposes” in section 13 of the said Act); and

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and section 16 of that Act:

Provided that for the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Board shall be deemed to be a railway company and section 36 (except paragraph (4) thereof) of the Railway Companies Act 1867 shall apply accordingly.

3.—(1) The several words and expressions to which by the Acts wholly or partially incorporated with this

Interpretation.

A.D. 1931. — Act meanings are assigned shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction. Provided that in and for the purposes of this Act the expressions “the undertakers” or “the promoters of the undertaking” or “the company” used in such incorporated Acts shall mean the Board. Provided also that for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 the works authorised by this Act shall be deemed to be the railway and the centre lines of (a) the embankments shown on the deposited plans of the reservoir so authorised and (b) the conduit or line or lines of pipes so authorised shall be deemed to be the centre of the railway.

(2) In this Act unless the subject or context otherwise requires—

“The Board” means the Metropolitan Water Board;

“The water fund” means the water fund established by the Board under the Metropolis Water Act 1902;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

“The arbitrator” means the arbitrator to whom any question of disputed compensation is referred pursuant to the Acquisition of Land (Assessment of Compensation) Act 1919;

“The limits of supply” means the limits within which the Board are for the time being authorised to supply water.

Power to

make works.

4. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections and may use the works hereinafter described (that is to say):—

Work No. 1—

A service reservoir in the parish of Chessington in the rural district of Epsom in the county of Surrey;

Work No. 2—

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An aqueduct or line or lines of pipes in the said parish of Chessington extending from the said service reservoir to the road leading from Surbiton to Leatherhead.

5. Subject to the provisions of this Act the Board may in connection with and as part of the works referred to in the section of this Act of which the marginal note is "Power to make works" make and maintain upon or in any lands within the limits of deviation for the said works respectively all such buildings machinery works and apparatus of whatever character as may be necessary or convenient whether for constructing inspecting maintaining repairing cleansing managing working and using the said works or for the general purposes of their undertaking :

Subsidiary
works.

Provided that any electrical apparatus shall be so made maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line :

Provided also that nothing in this section shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

6. In constructing the works by this Act authorised the Board may deviate from the lines or situations thereof shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may also deviate from the levels shown on the deposited sections to any extent upwards not exceeding five feet and to any extent downwards Provided that no part of Work No. 2 by this Act authorised shall be constructed above the surface of the ground.

Power to
deviate.

7.—(1) For the purpose of constructing maintaining repairing cleansing or examining the works by this Act authorised or for the purpose of disposing of any water flowing into any excavation made by the Board during the construction and for the purposes of the said works the Board may cause the water in any such work or excavation to be discharged into any available river stream ditch or watercourse.

Temporary
discharge
of water
into
streams.

A.D. 1931.

(2) In the exercise of the powers conferred by this section the Board shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such powers the amount of such compensation to be settled in case of difference by an arbitrator to be agreed upon between the Board and the party claiming such compensation or (failing such agreement) to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Period for
completion
of works.

8. If the works referred to in the section of this Act of which the marginal note is "Power to make works" are not completed on or before the first day of October one thousand nine hundred and forty-six then as from the said date the powers by this Act granted to the Board for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Works to be
part of under-
taking of Board.

9. The works authorised by this Act shall be deemed part of the undertaking of the Board.

Power to
acquire
land for
works.

10. Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited book of reference as they may require for the purposes of the works authorised by this Act.

Acquisition
of lands for
various
purposes.

11. Subject to the provisions of this Act the Board may purchase and take for the purposes hereinafter specified the whole or so much as they may think fit of the lands hereinafter described which are delineated upon the deposited plans and described in the deposited book of reference or any of them or any outstanding estate or interest therein (that is to say) :—

- (1) For the protection against pollution of the water in the service reservoir (Work No. 1) authorised by this Act or for other purposes of the undertaking of the Board—

Such of the lands in the parish of Ches-
sington in the rural district of Epsom in
the county of Surrey comprised within the

limits of deviation for the said service reservoir marked on the deposited plans as shall not be required for the purposes of that reservoir or of the aqueduct or line or lines of pipes (Work No. 2) by this Act authorised: A.D. 1931.
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(2) For the purposes of repairing and protecting the banks of the New River—

(a) Lands in the parish of Great Amwell in the rural district of Ware in the county of Hertford extending along the right bank of the New River;

(b) Lands in the said parish of Great Amwell extending along the left bank of the New River;

(c) Lands in the urban district of Cheshunt in the said county of Hertford extending along the right bank of the New River—

(i) between the north-eastern boundary of the enclosure numbered 1322 on the 1/2500 Ordnance map edition 1914 (Hertfordshire sheet XLI—8) and the south-eastern corner of the enclosure numbered 1536 on the 1/2500 Ordnance map edition 1914 (Hertfordshire sheet XLI—12);

(ii) between a point 3 chains or thereabouts south-eastward of Theobald's Lane and a point 5 chains or thereabouts southward of the northernmost corner of the enclosure numbered 1474 on the last-mentioned Ordnance map;

(iii) between the footbridge leading to the island numbered 1476 on the last-mentioned Ordnance map and a point 1.5 chains or thereabouts northward of the southernmost corner of the enclosure numbered 1422 on that Ordnance map;

(d) Lands in the said urban district of Cheshunt extending along the left bank of the New River:

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(3) For the general purposes of the undertaking of the Board—

(a) Lands in the metropolitan borough of Deptford in the county of London—

(i) abutting on the western side of the river Ravensbourne;

(ii) abutting on the eastern side of Brookmill Road;

(b) Lands in the urban district of Staines in the county of Middlesex in part adjoining the western side of Stanwell New Road :

Provided that nothing in this Act shall authorise the Board to stop up or interfere with any part of the footpath in the said urban district of Cheshunt leading from Bury Green Road to Theobald's Lane and crossing over the New River by means of a footbridge.

Power to
divert
stream in
urban
district of
Staines.

12.—(1) The Board may divert in the manner shown on the plan signed by Herbert Dunnico the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan copies have been deposited in the Committee and Private Bill Office of the House of Commons in the Parliament Office House of Lords and at the principal office of the Board) but not in the manner shown on the deposited plans so much of the stream or ditch in the urban district of Staines known as Bonehead Ditch as is situate within the limits of lands to be acquired in the said urban district shown on the deposited plans.

(2) Nothing in this section or done by the Board thereunder shall in any way alter or affect the boundary between any local areas formed by the said stream or ditch but such boundary shall continue as if the said stream or ditch forming the same had not been diverted and this Act had not been passed.

Power to
divert
footpath in
urban
district of
Staines.

13.—(1) The Board may divert in the manner shown on the signed plan referred to in the section of this Act of which the marginal note is "Power to divert stream in urban district of Staines" but not in the manner shown on the deposited plans so much of the public footpath in the urban district of Staines leading from Stanwell Moor to Staines near Hammond's Farm as is

situate within the limits of lands to be acquired in the said urban district shown on the deposited plans and is shown on those plans as proposed to be diverted and the Board may stop up and cause to be discontinued as a footpath so much of the said footpath as will be rendered unnecessary by the said diversion :

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Provided that the Board shall not stop up any portion of the said footpath until two justices shall have certified that the new footpath shown on the said signed plan has been completed to their satisfaction and is open for public use.

(2) As from the date of the said certificate all rights of way over or along the portion of the said existing footpath so stopped up as aforesaid shall be extinguished and the Board may subject to the provisions of the Waterworks Clauses Act 1847 with respect to mines appropriate and use for the purposes of their undertaking the site of the portion of the said footpath stopped up so far as the same is bounded on both sides by lands of the Board :

Provided that the Board shall make full compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

(3) The Board shall for the period of two years after the completion of the said diversion maintain the said new footpath.

(4) The provisions of this section shall supersede such of the provisions of section 11 (Power to divert footpath) of the Metropolitan Water Board (New Works) Act 1911 as are inconsistent therewith.

(5) The Board shall not exercise the powers of this section unless or until they shall have acquired the lands in the urban district of Staines referred to in the section of this Act of which the marginal note is "Revival of powers for compulsory purchase of certain lands" and shall (subject as aforesaid) have diverted in the manner prescribed by section 11 (Power to divert footpath) of the Metropolitan Water Board (New Works) Act 1911

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Correction
of errors in
deposited
plans and
book of
reference.

14. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Board after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county in which such lands are situate (or in the case of lands situate within the metropolitan police area to a metropolitan police magistrate instead of to two justices) for the correction thereof and if it appear to the justices or magistrate that the omission mis-statement or wrong description arose from mistake they or he shall certify the same accordingly and shall in their or his certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the county council of the county in which the said lands are situate and such certificate shall be kept by such clerk with the other documents to which the same relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with such certificate.

Persons
under dis-
ability may
grant ease-
ments &c.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Owners
may be
required to

16. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Board of the powers of this Act it may happen

that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Board and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto therefore the following provisions shall have effect :—

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sell to
Board parts
only of
certain
lands and
buildings.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Board or each or any of them are in this section included in the term "the owner" and the said properties are in this section referred to collectively as "the scheduled properties" and severally as a "scheduled property":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Board that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Board such portion only without the Board being obliged or compellable to purchase the whole the Board paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Board allege that such portion cannot be so severed the arbitrator shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Board have compulsory powers of purchase) can be so severed:

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- (4) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Board the portion which the arbitrator shall have determined to be so severable without the Board being obliged or compellable to purchase the whole the Board paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator:
- (5) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Board may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Board in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly

incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit. A.D. 1931.
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The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any of the scheduled properties.

17. In settling any question of disputed purchase-money or compensation under this Act the arbitrator shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the first day of October one thousand nine hundred and thirty if in the opinion of the arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. Compensation in case of recently altered buildings acquired by Board.

18. The Board and their surveyors officers and workmen and any person duly authorised in writing under the hand of the clerk to the Board may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings which may be taken or used under the powers conferred or revived by this Act or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject to or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings. Power to enter upon property for survey and valuation.

19. All private rights of way over any lands which shall under the powers conferred or revived by this Act be acquired compulsorily shall as from the date of such As to private rights of

A.D. 1931.

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way over
lands taken
compul-
sorily.

acquisition be extinguished. Provided that the Board shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Board to
acquire
easement
only in
Rushet
Common.

20.—(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Board shall not purchase or take any part of the common or commonable lands in the parish of Chessington in the rural district of Epsom in the county of Surrey known as Rushet Common but they may acquire compulsorily or by agreement the easement or right of placing laying maintaining repairing renewing and inspecting the aqueduct or line or lines of pipes (Work No. 2) by this Act authorised under the surface of the said common.

(2) The surface of the said common or commonable lands which may be disturbed by the execution of any work pursuant to any easement or right acquired under this Act shall as soon as practicable be restored by the Board to its former condition.

Limit of time
for compul-
sory purchase
of lands by
Board.

21. The powers of the Board for the compulsory purchase or taking of lands under the foregoing provisions of this Act shall cease on the first day of October one thousand nine hundred and thirty-four.

Revival of
powers for
compulsory
purchase of
certain
lands.

22. The powers conferred upon the Board by the Metropolitan Water Board (New Works) Act 1911 for the compulsory purchase of lands and easements for the purposes of the storage reservoir (Reservoir No. 5) and the conduits or lines of pipes (Conduit No. 14 and Conduit No. 15) described in and authorised by that Act are hereby revived and continued and may be exercised by the Board at any time before the first day of October one thousand nine hundred and thirty-four but on that date the powers for such compulsory purchase shall cease except so far as such powers shall then have been exercised.

For protec-
tion of
Staines
commoners.

23.—(1) Notwithstanding anything in this Act contained or shown upon the deposited plans and sections the Board shall not purchase or take under the powers of the Metropolitan Water Board (New Works) Act

1911 as revived and continued by this Act any lands forming part of Staines Moor in the urban district of Staines except the lands coloured pink on the signed plan referred to in the section of this Act of which the marginal note is "Power to divert stream in urban district of Staines."

A.D. 1931.

(2) Nothing in this section shall prevent the Board from utilising without payment for such period as may be reasonably necessary such lands forming part of Staines Moor as are reasonably necessary for the purposes of the diversion of Bonehead Ditch referred to in the section of this Act of which the marginal note is "Power to divert stream in urban district of Staines" but any lands so utilised shall continue to form part of the said moor. Forthwith upon completion of the said diversion the Board shall make good and restore to the same condition in all respects as before the commencement of the works the surface of so much of any such lands as aforesaid as they may enter upon for the purposes of the said diversion and as does not form the site of the said ditch as diverted.

24. Sections 56 (Limiting common land to be taken) and 57 (Lands to be substituted for portions of Staines Moor to be acquired) of the Metropolitan Water Board (New Works) Act 1911 are hereby repealed.

Repeal of provisions in regard to Staines Moor.

25.—(1) Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Board may retain hold and use for such time as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands acquired by them under the powers conferred or revived by this Act or any interest therein and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take money for equality of exchange.

Power to retain sell &c. lands.

A.D. 1931.
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(2) Nothing in this section contained shall release the Board or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Board or any person from or through whom the Board may have derived or may derive title to the same.

Application
of London
Building
Act.

26. Nothing in this Act shall exempt the Board in the execution of any works or the erection construction or execution of any buildings or structures or additions to or alterations of buildings or structures from such of the provisions of the London Building Act 1930 and any Act amending or extending the same and of any byelaws and regulations in force thereunder as are applicable to the Board.

Power to
lay mains
outside
limits of
supply for
supply
within those
limits.

27.—(1) For the purpose of supplying water within the limits of supply the Board may exercise with reference to any street or road or part of a street or road outside those limits which they may require to open or break up for that purpose all rights powers and authorities conferred by the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and the said provisions shall apply to such street or road or part of a street or road as if the same were within the limits of supply. Provided that the powers of this section shall not be exercised with reference to any street or road or part of a street or road except with the consent in writing of the authority liable to repair the same but in any case in which such consent has been withheld and the Minister of Health is of opinion that the consent of the authority should be dispensed with having regard to all the circumstances of the case and to any representations made to him by the authority within fourteen days from the receipt by them of notice of any application by the Board to the said Minister under this proviso the said Minister may by writing addressed to the Board signed by an assistant secretary of the Ministry of Health dispense with the same accordingly.

(2) The powers of this section shall be in addition to and not in derogation of the powers of the Board under section 18 (As to streets and roads forming boundary of limits of supply) of the Metropolitan Water Board Act 1927. A.D. 1931.
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(3) The provisions of section 96 (For the protection of railway companies) of the Metropolitan Water Board (Various Powers) Act 1907 shall so far as applicable extend and apply to the exercise by the Board of the powers of this section with reference to any street or road or part of a street or road maintained by any railway company or any joint committee incorporated or constituted by Act of Parliament upon which such company may be represented and for the protection of such company or joint committee as if it were one of the railway companies referred to in that section.

28. The provisions of section 31 (For protection of London United Tramways Limited and South Metropolitan Electric Tramways and Lighting Company Limited) of the Metropolitan Water Board Act 1915 shall with all necessary modifications apply to the execution by the Board under the powers of the section of this Act of which the marginal note is "Power to lay mains outside limits of supply for supply within those limits" of any works in under or upon any street or road in which any tramway or light railway owned or operated by the London United Tramways Limited the Metropolitan Electric Tramways Limited or the South Metropolitan Electric Tramways and Lighting Company Limited is situate as if the expression "the company" where used in that section included the Metropolitan Electric Tramways Limited in respect of any tramway or light railway owned or operated by that company and the expression "the tramway" included any such last-mentioned tramway or light railway and any posts cables wires or other apparatus connected therewith. For protec-
tion of
London
United
Tramways
Limited
Metropoli-
tan Electric
Tramways
Limited and
South
Metropoli-
tan Electric
Tramways
and
Lighting
Company
Limited.

29. All expenses incurred by the Board in the execution of the purposes of this Act and not otherwise provided for including the payment of interest on any stock issued or moneys borrowed for those purposes and the redemption of such stock and the repayment Expenses of
execution of
Act.

A.D. 1931. — of such moneys (but excluding expenses properly chargeable to capital and payable out of borrowed moneys) shall be paid out of the water fund.

Power to borrow.

30.—(1) The Board may from time to time (in addition to any moneys which they are now or may by any other Act be authorised to borrow) borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the water fund and all their revenues and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (which periods shall be deemed to be the prescribed periods for the purposes of the enactments referred to in the section of this Act of which the marginal note is “Application of certain financial provisions of former Acts”):—

Purpose.	Amount.	Period for repayment.
(a) For the construction of the works authorised by this Act.	£ 10,000	Sixty years from the date or dates of borrowing.
(b) For the acquisition of lands - -	21,000	Sixty years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Board may also with the consent of the Minister of Health borrow such further sum or sums of money as may be required for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period or periods as may be prescribed by the Minister of Health (which period or periods shall be deemed to be the prescribed period or periods for the purposes of the enactments referred to in the section of this Act of which the marginal note is “Application of certain financial provisions of former Acts”).

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Board may mortgage or charge the water fund and all their revenues. A.D. 1931.

31.—(1) Section 27 (Provisions as to local inquiries) of the Metropolis Water Act 1902 shall apply for the purposes of this Act and the following sections of the Metropolitan Water Board Act 1906 and the schedule to that Act and section 60 (Power to vary rate of accumulation of sinking funds) of the Metropolitan Water Board (Various Powers) Act 1921 shall extend and apply to and with respect to moneys authorised to be borrowed under the powers of this Act and the repayment thereof as if such sections and schedule had been in terms re-enacted in this Act :—

Application
of certain
financial
provisions
of former
Acts.

Marginal note.	Number of section.
Formation maintenance and application of sinking fund - - - - -	8
Increase reduction or discontinuance of payments to sinking fund - - - - -	9
Surplus of sinking fund - - - - -	10
Power to re-borrow - - - - -	11
Form of mortgage - - - - -	12
Register of mortgages - - - - -	13
Transfer of mortgages - - - - -	14
For protection of lenders - - - - -	15
Board not to regard trusts - - - - -	16
Application of borrowed moneys - - - - -	17
Power to raise money by creation and issue of additional amounts of Metropolitan water stock - - - - -	18
Receiver - - - - -	19
Return to Local Government Board as to repayment of debt - - - - -	20

Provided that the said section 27 of the Metropolis Water Act 1902 shall for the purposes of this Act have effect as if the words “not exceeding three guineas a day” were omitted from subsection (3) thereof.

A.D. 1931.
—

(2) The repayment of the said moneys shall be effected—

either by equal yearly or half-yearly instalments of principal or of principal and interest combined ;
or by means of a sinking fund ;
or partly by such instalments and partly by a sinking fund.

(3) Every such instalment and payment to a sinking fund shall be paid out of the water fund and the first payment by instalments or to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months after the date of the borrowing of the money in respect of which such payment is made.

Power to
borrow on
short term
loans.

32. The Board shall be deemed to be a local authority for the purposes of section 3 of the Local Authorities (Financial Provisions) Act 1921 (which section relates to the borrowing by local authorities on short term loans) and the said section in its application to the Board shall have effect as if the water fund and all the revenues of the Board had been referred to in subsection (2) thereof instead of the funds properties rates and revenues of the local authority.

Costs of
Act.

33. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board.

[21 & 22 GEO. 5.] *Metropolitan Water
Board Act, 1931.*

[Ch. c.]

The SCHEDULE referred to in the
foregoing Act.

A.D. 1931.

PROPERTIES OF WHICH PARTS ONLY MAY BE
ACQUIRED BY THE BOARD.

Work &c.	Local area.	Numbers on deposited plan.
Land to be acquired for the purposes of repairing and protecting the banks of the New River.	Parish of Great Amwell.	3 to 9 inclusive.
	Urban district of Cheshunt.	7 to 10 inclusive.

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